

MUTUAL NON-DISCLOSURE AGREEMENT

Professional Legal Services — Sample Document

Document Reference	NDA-SAMPLE-2026-001
Effective Date	25 August 2026
Disclosing Party	Northstar Digital Solutions Pvt. Ltd.
Receiving Party	Example Consulting Group
Matter	Confidential Business and Technology Discussions

This Mutual Non-Disclosure Agreement (the “**Agreement**”) is a sample legal document prepared for demonstration, testing, document-management, and website workflow purposes. It is intended to illustrate the structure and professional presentation of a commercial confidentiality agreement and should not be treated as legal advice or as a substitute for a document reviewed and approved by a qualified legal professional.

1. Purpose

The parties anticipate discussions concerning a potential commercial relationship, technology engagement, professional services arrangement, investment, strategic collaboration, or other business opportunity. In connection with those discussions, each party may disclose information that is confidential, proprietary, commercially sensitive, or otherwise not publicly available. The purpose of this Agreement is to establish reasonable obligations governing the handling, use, protection, and disclosure of such information.

2. Definition of Confidential Information

“Confidential Information” means any non-public information disclosed by or on behalf of a party, whether in written, oral, electronic, visual, or other form, that is identified as confidential or that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information may include business plans, financial information, pricing, customer and supplier information, product roadmaps, source code, technical specifications, designs, research, trade secrets, marketing strategies, contracts, operating procedures, forecasts, intellectual property, security information, and other proprietary materials.

3. Exclusions

Confidential Information does not include information that the receiving party can demonstrate: (a) was publicly available without breach of this Agreement; (b) was lawfully known to the receiving party before disclosure; (c) was independently developed without use of or reference to the Confidential Information; or (d) was lawfully received from a third party without a duty of confidentiality. The receiving party bears the responsibility of maintaining reasonable records sufficient to substantiate an applicable exclusion where appropriate.

4. Permitted Use

The receiving party shall use Confidential Information solely for evaluating, negotiating, performing, or otherwise advancing the business purpose described in this Agreement. Confidential Information shall not be used for the receiving party's independent commercial advantage or for the benefit of any third party except as expressly permitted by the disclosing party in writing.

5. Standard of Care

Each party shall protect the other party's Confidential Information using at least reasonable care and no less care than it uses to protect its own information of similar sensitivity. Appropriate administrative, technical, and physical safeguards should be maintained to reduce the risk of unauthorized access, disclosure, alteration, loss, or destruction.

6. Authorized Disclosure

A receiving party may disclose Confidential Information to its employees, officers, directors, professional advisers, contractors, and representatives who have a legitimate need to know the information for the permitted purpose and who are subject to confidentiality obligations appropriate to the circumstances. The receiving party remains responsible for compliance with this Agreement by persons to whom it provides access.

7. Compelled Disclosure

If disclosure of Confidential Information is required by applicable law, regulation, court order, or governmental authority, the receiving party may make the required disclosure. To the extent legally permitted, the receiving party should provide prompt written notice to the disclosing party and reasonably cooperate, at the disclosing party's expense, with efforts to seek confidential treatment, a protective order, or another appropriate remedy.

8. Security Incident

If a party becomes aware of unauthorized access to, acquisition of, or disclosure of Confidential Information, it shall promptly notify the affected party to the extent permitted by law and reasonably cooperate in investigating and mitigating the incident. Any notification should identify, to the extent reasonably known, the nature of the incident, categories of information affected, and measures taken or proposed to reduce further risk.

9. Return or Destruction

Upon written request or completion of the applicable business discussions, the receiving party shall, subject to applicable law and legitimate archival requirements, return or destroy Confidential Information and reasonable copies thereof. Upon request, the receiving party may provide written confirmation that commercially reasonable steps have been taken to complete the return or destruction process.

10. Intellectual Property

No license, assignment, transfer, or other grant of intellectual property rights is created by this Agreement except for the limited right to use Confidential Information solely for the permitted purpose. All ownership rights in Confidential Information remain with the disclosing party or its applicable licensors.

11. No Obligation to Proceed

Nothing in this Agreement requires either party to enter into a transaction, continue negotiations, purchase products or services, or disclose any particular information. Each party retains the right to discontinue discussions at any time, subject to obligations that expressly survive termination or expiration of this Agreement.

12. Term and Survival

This Agreement begins on the Effective Date and continues until terminated in accordance with its terms. Confidentiality obligations shall continue for a commercially reasonable period following disclosure, except that information qualifying as a trade secret shall remain protected for so long as it retains trade-secret status under applicable law, subject to any mandatory legal limitations.

13. Remedies

The parties acknowledge that unauthorized use or disclosure of Confidential Information may cause harm that may not be adequately compensated by monetary damages alone. To the extent permitted by applicable law, the affected party may seek appropriate equitable relief in addition to any other remedies available at law or in equity. No remedy is intended to exclude any remedy otherwise available under applicable law.

14. Governing Law and Dispute Resolution

This sample provision is intended to demonstrate a conventional commercial agreement structure. The parties may specify the governing law, jurisdiction, venue, arbitration framework, mediation procedure, and other dispute-resolution mechanisms based on the transaction and applicable law. Any final agreement should be reviewed by qualified counsel before execution.

15. General Provisions

This Agreement constitutes the understanding between the parties concerning confidentiality for the stated purpose and supersedes prior discussions on that subject to the extent permitted by law. Any amendment should be made in writing and appropriately authorized. If any provision is held unenforceable, the remaining provisions should continue to the extent permitted by law. Neither party may assign this Agreement except as permitted by its terms or applicable law. Electronic signatures and counterparts may be accepted where legally valid.

EXECUTION & ACKNOWLEDGEMENT

The parties acknowledge that they have had an opportunity to review this Agreement and, where appropriate, obtain independent legal advice before signing. The signature section below is provided solely as a demonstration of a typical legal-document workflow and does not constitute an executed agreement.

DISCLOSING PARTY	RECEIVING PARTY
Northstar Digital Solutions Pvt. Ltd.	Example Consulting Group
Authorized Representative: _____	Authorized Representative: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____
Signature: _____	Signature: _____

DOCUMENT CONTROL

Version	1.0 — Sample
Prepared For	Demonstration / Legal Services Website
Document Type	Mutual Non-Disclosure Agreement
Status	DRAFT — NOT EXECUTED
Confidentiality	Sample content only

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